**THE NATIONAL COMPANY LAW TRIBUNAL**
**NEW DELHI BENCH-IV**
**CP. (CAA)-87/ND/2020**

**IN THE MATTER OF SCHEME OF AMALGAMATION**

**BETWEEN**

**M/s Raghudha Properties Pvt Ltd.**

...Transferor Company/Petitioner No. 1

WITH

**M/s Mangalam Energy Development Company Pvt. Ltd.**

...Transferee Company/Petitioner No. 2

**SECTION 230-232 OF THE COMPANIES ACT, 2013**

**Order Delivered on: 11.05.2022**

**Coram:**

**SH. DHARMINDER SINGH, HON'BLE MEMBER (J)**

**SH. PRASANTA KUMAR MOHANTY, HON'BLE MEMBER (T)**

**ORDER**

**PER- SHRI DHARMINDER SINGH, MEMBER- JUDICIAL**

This petition has been filed by the Petitioner Company under Sections 230 and 232 of the Companies Act, 2013 read with the Company (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016, for the purpose of approving the Scheme of Amalgamation, as contemplated between the Transferor Company with Transferee Company.



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2. It is represented that the registered office of the Transferee Company lies within the jurisdiction of this Tribunal.

3. A perusal of the petition discloses that the first motion application bearing C.A. No. (CAA)83/ND/2020 was filed by the Petitioner. Based on the averments made in the said application the Tribunal vide order dated 07.12.2020 dispensed the meetings of the equity shareholders, secured creditors and unsecured creditors of the applicant/transferee company.

4. The petitioner company was directed to issue public notices and individual notices to the Regional Director, Official Liquidator and the Income Tax Department. An affidavit dated 23.02.2021 filed by the petitioner company affirming that the petitioner has effected publication in the English and hindi daily newspapers "Business Standard" Delhi edition on 13.02.2021 inviting objections if any to the proposed Scheme of Amalgamation. The affidavit further discloses that due notice of the proposed scheme had been served on the Registrar of Companies, Regional Director, Northern Region, Income Tax Dept. and the Official Liquidator in compliance with the order of the Tribunal.

5. Pursuant to the Publication in the daily newspapers, for listing of the matter before this Bench, no objector has appeared before us.

6. The reply of the Regional Director and Report of Official Liquidator have been filed. The Regional Director in its report submitted that a query letter was issued on 09.11.2021 to which reply was received on 25.11.2021 and in terms of RoC report dated 26.11.2021 the following observations were made that from the contents of the scheme, the reply/clarifications received from



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the petitioner companies it appears that the scheme is not in violation of 230/232 of the Companies Act, 2013. The report of official liquidator has been filed vide affidavit dated 08.04.2021 stating that the said scheme is in no manner prejudicial to the interest of the members or to the public interest as per the provisions of the Companies Act, 2013.

7. The Income Tax department has not filed its reply. Be that as it may, in order to protect the interest of revenue, it is to be made clear that there shall be no impediment on the power and jurisdiction of the Income Tax Department in recovery of pending Income Tax dues, penalties etc., if any, as provided in the law.

8. The certificate of the statutory auditor of the petitioner company, certifying that the Accounting Treatment in the Scheme is in conformity with the Accounting Standards in terms of Section 133 of the Companies Act 2013, is on record. The Audited Financial Statements for the year 31.03.2020 of the petitioner company have been filed.

9. We have heard the counsels for the petitioners and also considered the representation made by the Regional Director, Northern Region. In the reply filed by the Regional Director (NR), it has been confirmed that the petitioner company is regular in filing their statutory returns. No prosecution has been filed, no complaints are pending and no inspection or investigation has been conducted in respect of the applicant companies.

10. In view of the foregoing, upon considering the approval accorded by the members and creditors of all companies to the proposed Scheme, and no

objections being raised by the office of the Regional Director there appears to be no impediment in granting sanction to the Scheme.

11. Consequently, the sanction is hereby granted to the Scheme under sections 230-232 of the Companies Act, 2013. The sanctioned Scheme of amalgamation shall be binding petitioner company and on all their respective shareholders and creditors.

12. The Petitioner shall also be bound to comply with the statutory requirements in accordance with law. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this court to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of both the petitioner companies.

13. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any way granting exemption from payment of stamp duty, Statutory dues or any other charges, if any, and payment in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

This Tribunal further order that upon scheme of Amalgamation by way of Merger coming into effect;

- Upon the sanction becoming effective from the appointed date of amalgamation i.e., 1st April, 2020, the

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Transferor Companies No.1 shall stand dissolved without undergoing the process of winding up.

- All benefits, entitlements, incentives and concessions under incentive schemes and policies that the Transferor Company is entitled to including under Customs, Excise, Service Tax, VAT, Sales Tax, GST and Entry Tax and Income Tax laws, subsidy receivables from Government, grant from any governmental authorities, direct tax benefit/exemptions/deductions, shall, to the extent statutorily available and along with associated obligations, stand transferred to and be available to the Transferee Company as if the Transferee Company was originally entitled to all such benefits, entitlements, incentives and concessions;

- All contracts of the Transferor Company, which are subsisting or having effect immediately before the Effective Date, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favor of the Transferee Company and may be enforced by or against it as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party or beneficiary or obliged thereto;

- All the employees of the Transferor Company shall be deemed to have become the employees and the staff of the



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Transferee Company with effect from the Appointed Date, and shall stand transferred to the Transferee Company without any interruption of service and on the terms and conditions no less favorable than those on which they are engaged by the Transferor Company, as on the Effective Date, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans and any other retirement benefits;

- All liabilities of the Transferor Company, shall, pursuant to the provisions of section 232(4) and other applicable provisions of the Companies Act, 2013, to the extent they are outstanding as on the Effective Date, without any further act, instrument or deed stand transferred to and be deemed to be the debts, liabilities, contingent liabilities, duties and obligations etc. as the case may be, of the Transferee Company and shall be exercised by or against the Transferee Company, as if it had incurred such liabilities.
- All proceedings now pending by or against the Transferor Company be continued by or against the Transferee Company.
- Any person interested or effected shall be at liberty to apply to this Tribunal in the above matter for any directions that may be necessary;

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14. The petitioners shall within thirty days of the date of the receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the transferor company and registered with them and shall consolidate the files of the companies, is accordingly duly approved and sanctioned in terms of the above.

15. Any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

The petition stands disposed of in the above terms.

Let copy of the order be served to the parties.

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**(PRASANTA KUMAR MOHANTY)**
**MEMBER (T)**

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**(DHARMINDER SINGH)**
**MEMBER (J)**